

Citizens by Law, Outsiders by Culture: Civic Nationalism and the Unequal Burden of Belonging

Before I began studying nationalism, I generally believed that civic nationalism was more inclusive than ethnic nationalism. Ethnic nationalism primarily defines a person's membership in a nation based on blood ties or ethnic identity, whereas civic nationalism places greater emphasis on shared legal and political values and citizenship. Therefore, I used to believe that as long as a person obeyed the law and embraced democratic principles, they had the opportunity to become a member of the national community. However, civic nationalism is not a single, uniform concept.

Before continuing the discussion, it is necessary to clarify that civic nationalism and ethnic nationalism are ideal types in theoretical analysis; in reality, states typically do not fully conform to either type. The term "membership" as used in this paper refers to citizenship and its rights; "cultural belonging" refers to being recognized as a full and legitimate member of a national community. Such a person need not repeatedly explain their background or prove that they align with national values. This paper will examine France's regulations on religious symbols in schools and compare differences in how schools handle religion by

drawing on the Begum case in the United Kingdom and the Multani case in Canada. I will also use the Canadian Multiculturalism Act to illustrate how Canada defines the relationship between national identity and cultural diversity. Furthermore, I argue that the inclusiveness of civic nationalism must be assessed based on three criteria: whether membership is formally open; whether the actual burdens imposed by the rules on different groups are symmetrical; and whether different groups possess equal standing to interpret shared values.

Civic nationalism is more inclusive at the level of formal membership, but it becomes exclusionary when dominant interpretations of universal political values are turned into cultural tests of belonging.

The first criterion is whether national membership is formally open regardless of descent. Simonsen and Bonikowski's article made me rethink a question. Does defining national membership through elective criteria necessarily make civic nationalism more inclusive? They argue that in some Northwestern European countries, secularism, gender equality and liberalism are regarded as the core elements of national identity. In these places, Muslims are often described as not secular enough or not liberal enough or considered incompatible with European values (Simonsen & Bonikowski, 2020). Although civic nationalism

lowers the formal threshold of membership, it may also establish new boundaries based on its own culture and values. In my opinion, the concept of "imagined community" proposed by Anderson (2006) helps to explain this difference. The shared imagination of "who we are" also draws boundaries around who can and cannot fully belong to "us". Therefore, when a country imagines itself as a secular and progressive community, civic nationalism may work simultaneously on two levels. On the one hand, it formally opens citizenship to people of different ethnic backgrounds. On the other hand, it maintains the distinction between legal membership and cultural belonging. Public schools matter here because they do more than regulate individual rights: they help institutionalize an image of the ordinary national citizen.

Anderson's use of the term "imagined" emphasizes how a national community is formed among people who are strangers to one another. For example, when people read the news on their own, they become aware that many strangers are engaging with the same set of events at roughly the same time. The education students receive, public ceremonies, national symbols, and a shared political language perpetuate this sense of shared existence and gradually make a specific national way of life appear as an everyday norm (Anderson, 2006).

The second criterion concerns whether rules expressed in universal terms impose unequal burdens on different groups in practice. These unequal burdens include two aspects: one is the practical cost of changing one's conduct, and the other is the need to further prove that their choice was made autonomously and is in line with the shared political values. In his analysis, Asad argues that these burdens are not distributed evenly. Religious practices are usually publicly judged, and people will examine these behaviors according to the criteria of "oppression" or "autonomy", while secular choices rarely face the same degree of examination (Asad, 2006).

In 2004, France prohibited students in public primary and secondary schools from wearing signs or clothing that conspicuously manifest a religious affiliation, a measure defended in the name of *laïcité*, freedom of conscience, gender equality, and the common civic function of public education (French Republic, 2004; French Ministry of National Education, 2004). Viewed through Asad's framework, the controversy makes the autonomy of Muslim schoolgirls who wear the headscarf a matter of public judgment. Removing the headscarf may be interpreted as liberation from family or religious authority, while continuing to wear it may be treated as evidence that such authority remains. However, various choices in secular life will also be influenced by family, education and social norms. Asad notes that the Stasi Commission tried to

determine whether the desire of girls who wore headscarves was "genuine," but did not ask the same question of girls who did not wear headscarves (Asad, 2006). Therefore, asymmetry means that secular choices are often presumed to be autonomous, while religious choices need to be constantly defended to prove that they come from free will. Democratic countries do have a responsibility to protect individuals from obvious coercion and violence. But the problem is that when a particular secular lifestyle is regarded as the norm, religious choices are often presumed to be determined by tradition.

French republicanism provides a strong justification for the 2004 restrictions on religious symbols. The guidelines for implementing this law list the Islamic headscarf, the Jewish kippah, and crosses that are conspicuously large as examples of obvious religious affiliation, while allowing students to wear inconspicuous religious symbols (French Ministry of National Education, 2004). Supporters of republicanism believe that public schools assume the function of civic education, so students from different backgrounds need to study together under common rules. Since most students are still minors, schools have the responsibility to protect freedom, gender equality and school cohesion. French law also stipulates that schools must engage in dialogue with students before initiating disciplinary proceedings (French Republic,

2004). These goals are legitimate in themselves, but the formally universal rules can still produce unequal effects in practice. It is worth noting that some public holidays and customs originating from Christianity, after a long process of institutionalization, have been regarded as part of national traditions or culture. For example, public holidays in France still include Easter Monday, Ascension, All Saints and Christmas, while Muslim headscarves are regarded as a religious symbol and have always been under public scrutiny and regulation (Service-Public.fr, 2026). This contrast shows that Christian customs that have been institutionalized in history are often regarded as normal national traditions, while Muslim students may be asked to change their religious dress or repeatedly justify their choice of dress. Therefore, unless there is evidence of specific risks, the state cannot infer coercion from religious attire alone.

The third criterion concerns who is recognized as a credible interpreter of freedom, equality, and national belonging. This criterion of judgment leads to a further question: who has the right to decide whether a behavior is autonomous or not? What kind of interpretation of freedom can acquire institutional authority? Mills' critique of the social contract theory further clarifies this point. Those values that are claimed to be universally applicable may still be interpreted through institutions that

grant unequal credibility to different groups. For example, although the United States preached freedom and equality at the beginning of its founding, for a long time, Black Americans and Indigenous peoples have been excluded from the scope of these principles through slavery, dispossession and racial segregation (Mills, 1997). This history shows that even if a country openly advocates freedom and equality, it cannot guarantee that all groups can be equally regarded as the interpreters and practitioners of these values. Of course, racial slavery in American history cannot be treated as equivalent to the contemporary French headscarf controversy. However, by comparing these two situations together, it can be seen that there is inequality in the distribution of the interpretive authority. In the discussion of national integration, the dominant group is often seen as the embodiment of freedom, gender equality and civic responsibility. Muslims' clothing, religious beliefs and family relationships are more likely to be the basis for judging whether they are "truly integrated". Therefore, Mills' critique reminds us that the inclusiveness of a country's civic nationalism cannot be judged only by whether it promises to pursue universal principles. The more important question is whether different groups possess equal standing to interpret these values and challenge the definitions adopted by state institutions.

Mills also argues that the racial contract produces an "epistemology of ignorance." This concept refers to the fact that society can persistently misinterpret inequality and regard the dominant group's interpretations as objective judgments (Mills, 1997). If we extend this perspective to the issue of cultural identity, then when a Muslim woman states that she has chosen to wear a headscarf of her own volition, her statement may be interpreted as an internalization of patriarchal authority. When officials in a secular state interpret the same garment as a symbol of oppression, they are more readily viewed as capable of making objective judgments. This difference also shows that there is a relationship between cultural identity and credibility. To be recognized as a full citizen, a person first needs to be recognized as a rational and autonomous individual and as entitled to participate in defining freedom, equality and secularism. The meaning of democratic principles should remain open to public contestation and ongoing interpretation. State institutions have the power to enforce the law, courts can adjudicate specific rights disputes, and minority citizens should be allowed to challenge the existing definitions of freedom, equality and secularism.

The most direct rebuttal to this view is that it is still necessary for democratic societies to formulate some common rules to uphold freedom and equality. This is a real need. When facing minors and

complex peer relationships, schools sometimes need to formulate corresponding norms before the damage actually occurs. The British case *R (Begum) v. Headteacher and Governors of Denbigh High School* reflects this dilemma. Most of the students in the school are Muslims. After consulting the opinions of parents, students, teachers and local mosques, the school has formulated a school uniform policy. The policy allows students to wear headscarves of specified colors and can wear "shalwar kameez", but it is forbidden to wear "jilbab". The school believes that uniform dress helps to enhance the sense of campus community, and is also worried that stricter religious dress requirements may put greater pressure on the choice of female students' dress (House of Lords, 2006). The British House of Lords upheld the school's decision and stated that the case only involved specific students, specific schools and specific situations. Three of the five Law Lords found no interference with Begum's right to manifest her religion under Article 9; all five agreed that any interference would have been justified and proportionate in the circumstances (House of Lords, 2006).

On the other hand, Canada's Multiculturalism Act treats multiculturalism as a fundamental characteristic of Canadian identity and recognizes the freedom of members of Canadian society to preserve, enhance, and share their cultural heritage (Government of Canada, 1988). In *Multani v.*

Commission scolaire Marguerite-Bourgeoys, the Supreme Court of Canada recognized school safety as a legitimate objective but held that a blanket ban on wearing a kirpan went beyond what was necessary (Supreme Court of Canada, 2006). The court ruled that the student could continue to wear the kirpan, provided that it was sheathed, wrapped, and secured beneath his clothing (Supreme Court of Canada, 2006). Based on these examples, I think a common rule is more defensible when it responds to a specific institutional risk. In the Begum case, the relevant restrictions are to deal with specific concerns within a school; while in the Multani case, the court ruled that security risks must be resolved by stipulating the wearing of kirpan. In contrast, the national ban implemented by France does not need to prove that there is an comparable risk in a specific school, which makes it easier for visible religious differences to be transformed into a test of cultural belonging.

I still believe that the political community needs common laws and fundamental principles, and that democracies also have a responsibility to prevent violence, coercion and discrimination. The state may legitimately prohibit, investigate and punish such specific acts in accordance with the law. When public institutions can identify specific risks and prove that the relevant restrictions are both necessary and proportionate to that risk, corresponding preventive rules may also be

adopted. However, such acts cannot be regarded as a characteristic of an entire religious or cultural group. A person who holds a conservative view or chooses a different lifestyle from the mainstream society (including religious life) does not in itself indicate that their culture is incompatible with the nation. There is often only a fine line between reasonable legal regulation and cultural assimilation. When the state begins to judge whether a particular group meets mainstream society's expectations for modern, secular citizenship, what it is truly examining is that group's capacity to be recognized as a full member of the political community.

Civic nationalism has the potential to be more inclusive than ethnic nationalism, as it does not formally base membership on bloodlines. However, it is not inherently inclusive. Whether it is truly inclusive depends on whether shared values remain legal principles applied equally to specific behaviors, or whether they have become culturally colored standards that repeatedly place the burden of self-justification on minority citizens. Therefore, I am now more inclined to ask: Under what circumstances are shared political values essential principles for sustaining a democratic community, and under what circumstances do they become criteria for testing cultural belonging and national loyalty? Who has the authority to define these principles and determine what

demands they place on citizens? When citizens' understanding of these values differs from the state's interpretation, can they still be recognized as citizens who fully belong?

Full civic belonging means that citizens are entitled to participate in defining the nation's shared values and, while preserving their own cultural differences, continue to be recognized as part of the community.

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